

Amendment No. 1 to SB0885

Reeves
Signature of Sponsor

AMEND Senate Bill No. 885*

House Bill No. 1133

by adding the following new sections and renumbering the effective date section accordingly:

SECTION 2. Tennessee Code Annotated, Section 67-6-205(c)(7), is amended by deleting the subdivision in its entirety.

SECTION 3. Tennessee Code Annotated, Section 67-6-102(46), is amended by adding the following as a new, appropriately designated subdivision:

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(i) Machinery, apparatus, and equipment with all associated parts, appurtenances, and accessories, including hydraulic fluids, lubricating oils, and greases necessary for operation and maintenance, repair parts and any necessary repair or taxable installation labor therefor, that is necessary to, and primarily for:

(a) Enriching uranium materials, compounds, or products, including, but not limited to, gaseous diffusion enrichment technology and centrifuge enrichment technology used pursuant to:

(1) A contract for uranium enrichment products (EUP);

(2) A separative work unit (SWU) contract; or

(3) Any contract that provides for enriching uranium materials, compounds, or products between the owner of such equipment and its customers;

(b) Deconverting uranium materials, compounds, or products, initially in hexafluoride form to either oxide or metallic forms pursuant to

any contract between the owner of such equipment and its customers, including, but not limited to, an EUP contract or SWU contract, regardless of the assay of the Uranium-235 isotope in the uranium materials, compounds, or products to be deconverted; or

(c) Converting uranium materials or compounds, initially in oxide form to hexafluoride form pursuant to:

(1) Contracts for the supply of natural uranium in hexafluoride form ("UF6 Contracts");

(2) Conversion contracts; or

(3) Any contract that provides for converting uranium materials or products between the owner of such equipment and its customers; and

(ii) Subdivision (46)() (i) applies regardless of whether title to uranium component or other raw material to be enriched, deconverted, or converted is held by the owner of the equipment or the customer for which the uranium materials, compounds, or products are enriched, deconverted, or converted and regardless of whether the owner of such equipment sells enriched, deconverted, or converted uranium materials, compounds, or products to its customers or enriches, deconverts, or converts uranium materials, compounds, or products for its customers on a cost-plus basis or a toll or fee basis or as part of an EUP contract or SWU contract;